

BY-LAWS

HOLY VIRGIN MARY RUSSIAN ORTHODOX CHURCH OF LOS ANGELES



2022

PARISH BYLAWS
HOLY VIRGIN MARY RUSSIAN ORTHODOX ORTHODOX
CATHEDRAL OF LOS ANGELES, CALIFORNIA

ARTICLE I
PARISH

PURPOSE

a) The Holy Virgin Mary Russian Orthodox Cathedral, located in Los Angeles, California, is a Parish in the Diocese of the West in the autocephalous Orthodox Church in America, and was incorporated as a religious (not-for-profit) corporation in the State of California, on September 20, 1921.

It is the same as and successor to the former "Russian Orthodox Greek Catholic Church Association of Los Angeles, California," and "Holy Virgin Mary Russian Orthodox Church of Los Angeles."

b) As the local community of the Church, the Parish exists for the purpose of worshiping God according to the Holy Scriptures and Tradition of the Holy Orthodox Church, to encourage union with God among the members of the Parish, to provide religious education and charitable aid for its members, and to defend and promote the Orthodox Faith in America.

c) This Parish derives its ecclesiastical authority to function by virtue of its establishment within the Diocese of the West, Orthodox Church in America under the jurisdiction of the Diocesan Bishop, with headquarters in San Francisco, California. Such approval is issued upon approval of the parish charter or bylaws by the Diocesan Bishop of the Diocese of the West, Orthodox Church in America. This parish owes its ecclesiastical allegiance to the aforementioned diocese and such ecclesiastical authority and jurisdiction cannot be changed, altered, modified or revoked. The Statutes of the Orthodox Church in America ("Statute"), as adopted by the Nineteenth All-America Council on July 24, 2019, and as amended by any subsequent All-American Council, are hereby incorporated within and made a part of these bylaws. Nothing herein shall be construed as contrary to this Statute, and in the event of any conflict between the Statute and any other provision of these bylaws, the terms of the Statute shall prevail.

d) The Bylaws of the Diocese of the West, Orthodox Church in America ("Diocesan Bylaws"), as effective on January, 1, 1990, and as thereafter amended, are hereby incorporated within and made a part of these Parish Bylaws. Nothing herein shall be construed as contrary to these Diocesan Bylaws, and in the event of any conflict between the Diocesan Bylaws and any other provision of these Parish Bylaws, the terms of the Diocesan Bylaws shall prevail.

e) The Parish is part of the Orthodox Church in America, and therefore, its organization and administration are subject to the Statute of the Orthodox Church in America, adopted by the Second All-American Council of October 19-21, 1971, and amended by subsequent All-American Councils, and to the decisions of the Diocesan Assemblies of the Diocese of the West.

f) The Parish is primarily a hierarchal spiritual body recognized by the canons and traditions, disciplines and regulations of the Orthodox Church in America. Its adoption of a civil corporate existence is done to allow it recognition in the secular world. The Parish Bylaws as presented herein attempt to reflect the letter and spirit of the current Statutes of the Orthodox Church in America and must at no time be in conflict with any future Statutes of the Orthodox Church in America. Should the Statutes of the Orthodox Church in America be amended, the Parish shall adhere to the canons, traditions, disciplines, and regulations of the Statutes of the Orthodox Church in America until the Parish By-laws conform to the then current Statutes of the Orthodox Church in America. This amended by-laws complies with the Statute as amended at the 19th All American Council on July 24, 2019, effective as of August 1, 2019.

g) The Parish shall be regulated by the following Bylaws which are intended to express the spirit of the Holy Orthodox Tradition, as interpreted by the Orthodox Church in America, on a practical level in the life of the Parish as a whole, so that the Parish might fulfill its divinely appointed mission in a peaceful and orderly way to the glory of God.

ARTICLE II

THE PARISH MEMBERSHIP

PARISHIONER

a) A Parishioner is one who, by virtue of Baptism and Chrismation, is a member of the Body of Christ and incorporated into a local Parish community as a Parish member. No one can be a member of the Parish if he/she openly betrays the teaching of the Orthodox Church, or if he/she leads a life or acts in a manner condemned by the Holy Canons as incompatible with the name of Orthodox Christian.

b) A Parishioner has a reasonable expectation for pastoral care in accordance with the Orthodox tradition. He or she enjoys full benefits of participation in Parish life. He or she has the duty to sustain, strengthen and witness to the Orthodox Faith; to live according to the teaching of the Church; to participate in the religious services; to partake of the Holy Sacraments; to fulfill acts of Christian mercy; to support and help the Church.

c) Parish membership may be suspended or revoked by the Parish Priest or the

Diocesan Bishop for due cause, such as:

- i. Open rejection of the Orthodox Faith;
- ii. Public and open defamation of, defiance of, or rebellion against ecclesiastical authority;
- iii. Grave moral transgression; or
- iv. Formal association with a non-Orthodox religious body.

RIGHTS AND DUTIES OF PARISHIONERS

a) The religious, moral and social duties of the parishioners are: complying in their life and activities with the Orthodox Faith; attending the Divine Liturgy and other services on Sundays and holy days; keeping the rules and fasts of the Orthodox Church; at least four times during four fasting periods a year making Confession and receiving Holy Communion; bringing up and teaching their children according to the Orthodox faith and in the spirit of the Church; respecting the clergy, the Diocesan Authority and all the other hierarchs and governing bodies of the Church; obeying in matters of faith and ecclesiastical order; cooperating in every way toward good results in the work of the parish and directing their personal activity towards the welfare and prosperity of the parish.

b) The financial obligations of the parishioners are to pay: **1)** the established parish dues and such-additional assessments as may be voted by a parish meeting, and **2)** such contributions to the central funds of the Church as may be determined by the All-American Council or Diocesan Assembly.

c) The rights of the parishioners are: to attend regular and special parish meetings and, if at the time, in good standing to take part in the discussions and to vote; to be elected as members of the Parish Council and as parish officers, and in these positions to take part in the administration of the parish and in the direction of its life and activity.

VOTING MEMBER

- a) A Voting Member of the Parish is a Parishioner who:
- i. Is at least eighteen years of age;
 - ii. Receives the Sacrament of Confession at least four times a year in the Parish or, with the permission of the Parish Priest, elsewhere;
 - iii. Receives Holy Communion at least four times a year in the Parish; and
 - iv. Has been a Parishioner for a period of time fixed by the Diocesan Bishop.
 - v. Has fulfilled the financial obligations established by the All-American Councils, Diocesan Assemblies, and the Parish.

Voting Membership shall be denied if these criteria are not met.

By special decision of the Parish priest, concurred by the Diocesan Bishop, the following persons may be temporarily deprived of their rights to participate in the discussions or to vote at parish meetings, or to be elected to the Parish Council or as parish officers:

b) A Voting Member may be removed from the voting membership by the Parish Council together with written approval of the Parish Priest if such Member:

- i. fosters or propagates teachings in opposition to Dogma or transgresses the Canons of the Orthodox Church;
- ii. directly or indirectly obstructs those decisions rendered by the majority of the Parish or the Diocesan Bishop; or
- iii. directly or indirectly causes such disruption so as to affect adversely the spiritual life of the Parish.
- iv) those who rudely disturb peace and order in the church edifice or at parish meetings;
- v) those who disobey the resolutions of the parish bodies;
- vi) those who by their words or deeds bring disgrace on the Orthodox Faith, the Church, or the Parish;
- vii) those who secretly or openly injure the life of the Parish;
- viii) those who belong to anti-Church organizations;
- ix) those who live in the condition of cohabitation without being married;
- x) those who defame the good name or undermine the authority of the Parish Priest, the Diocesan Authority or the superior governing bodies of the Church or other members of the clergy.

Action to remove rights of voting membership shall be referred to Diocesan Bishop in the manner set forth in the current Diocesan Directives.

After the expiration of a period of time, determined by the Parish Priest, concurred in by the Diocesan Bishop, these persons may be restored to their rights if they repent and show improvement by their behaviour. Decisions of the Parish Priest may be appealed by any of the persons concerned to the Diocesan Authority or the Diocesan Court.

c) A Voting Member has accepted the right, privilege, and responsibility to vote in Parish Assemblies. A Voting Member may be considered for election to office in appropriate Parish bodies. A Voting Member is eligible for election as a delegate to the Diocesan Assembly and the All-American Council.

The list of voting members is to be established by the Parish Council at least once year. If in accordance with the application of the parishioners the Parish Council remits payment of financial obligations, these persons may be retained in the list of voting members.

TRANSFER MEMBERS

A person who was a "voting member" in another Parish of the Orthodox Church in America and who has transferred into the Parish, in accordance with the authorized transfer form, shall have full "voting member" status, upon transfer and after properly applying for the membership, approval of Parish Council and blessing of the Parish Priest.

MULTIPLE PARISH MEMBERSHIP PROHIBITED

Voting membership in two or more Parishes of the Orthodox Church is not permitted.

ARTICLE III THE PARISH CLERGY

PARISH PRIEST

a) The Parish Priest, also referred to as rector or priest-in-charge or Cathedral Dean, by virtue of his ordination and canonical appointment, serves as the spiritual father and teacher of that portion of the flock of Christ entrusted to him, the first among the Parish Clergy, and presides over liturgical worship in accordance with the tradition and the norms of the Church.

b) By virtue of the ecclesiastical authority delegated to him at his appointment by the Diocesan Bishop, the Parish Priest, as head of the Parish, shall:

- i. Teach, sanctify, and edify the faithful entrusted to his spiritual care with no partiality;
- ii. Provide for the administration of the sacraments and the celebration of all liturgical services;
- iii. Ensure that all educational, philanthropic, social, and cultural activities within the Parish or of the Parish are consistent with the mission of the Church;
- iv. Head and administer the Parish in a manner consistent with the provisions of the Statute, the governing documents of the Diocese and Parish, and the directives of the Diocesan Bishop in cooperation with the Parish Council. No activities in the Parish can be initiated without his knowledge, approval, and blessing; neither should he do anything pertaining to the Parish without the knowledge of the appropriate Parish bodies, so that always and everywhere there may be mutual trust, cooperation, unity, and love;
- v. Normally preside over the Parish Assembly and Parish Council, except in cases when the Bishop is present or when the Bishop's delegate is present for this purpose;
- vi. Head the Parish office and be entrusted with the care, custody, and maintenance of sacramental and administrative records, inventories, and

the official Parish seal; and

vii. Represent the Parish before local civil and judicial authorities and other third parties, either personally or through his delegate.

viii Implement all decisions of the OCA and Diocese, the Bishop and his designees, the Annual and Special Meetings of the Parish, and the Parish Council.

ix. Review and sign the Minutes of the Annual and Special Meetings of the Parish and Parish Council Meetings.

x. Be responsible for the supervision of additional clergy who are appointed or assigned by the Bishop to the Parish.

xi. Be an ex officio member of all Committees and the Chairperson of the Parish Council.

xii) It is the duty of the clergy to keep exact metrical records and such other records as may be required by the civil authorities, and to report to the Diocesan Authority with respect to the matters, at the times and on the forms indicated to the clergy by the district dean.

xiii) The Parish Priest serves as intermediary in dealings of the Diocesan Authority with the parish and vice versa on all parish matters.

c) The amounts to be paid to clergy for salary and their use of residence and utilities by agreement with the clergy shall be fixed by the Parish Council, subject to the approval of the Diocesan Authority, and shall not be decreased without the permission of the Diocesan Authority. All donations to the clergy for the celebration of private rites are to be retained by them in full without accountability to the parish.

d) The Parish Priest possesses the rights and exercises the responsibilities stipulated by the Sacred Canons, the Statute, and the directives of the Holy Synod and the Diocesan Bishop.

e) The Bishop has sole authority to assign, transfer or remove the Rector. The Parish Priest cannot vacate his Parish, change his status, or seek to transfer to another Parish or Diocese without the permission of the Diocesan Bishop.

f) Upon the death, retirement, or transfer of the Parish Priest, the vacancy in office may be filled on a temporary basis by the Diocesan Bishop until the office is filled on a permanent basis.

OTHER PARISH CLERGY

a) An Associate Priest is a Priest who has been appointed to a Parish by the Diocesan Bishop in consultation with the Parish Priest and Parish Council receives compensation from the Parish, and carries out ministries within the Parish as directed by the Parish Priest. His role in the governance of the Parish is determined by the established Diocesan procedures and norms.

b) An Assigned Deacon is a Deacon who has been appointed by the Bishop in consultation with the Parish Priest and Parish Council to service within a Parish, receives compensation from the Parish, and carries out ministries within the Parish as directed by the Parish Priest. His role in the governance of the Parish is determined by the established Diocesan procedures and norms.

c) Attached clergy are priests or deacons who are canonically attached to a Parish by the Bishop without necessary compensation from the Parish and without involvement in Parish governance.

d) Like the Parish Priest, all Parish Clergy, including those in minor orders, possess the rights and exercise the responsibilities stipulated for their order by the Sacred Canons, the Statute, and the directives of the Holy Synod and the Diocesan Bishop.

e) Parish Clergy cannot vacate the Parish to which they are assigned or attached, change their status, or seek to transfer to another Parish or Diocese without the permission of the Diocesan Bishop.

ARTICLE IV THE PARISH ASSEMBLY

a) The Parish Assembly, sometimes known as the Parish Meeting, meets at least once annually to consider matters pertaining to the life of the Parish and to conduct necessary elections relating to the Parish as a whole. The Parish Assembly is comprised of the Voting Members of the Parish, and such additional persons as shall be provided for by Diocesan and Parish Bylaws, established procedures and norms, normally meeting under the presidency of the Parish Priest, or the Diocesan Bishop or the Bishop's delegate. The Parish Priest together with the Parish Council may invite additional persons with or without the right to speak but without the right to vote.

b) The Parish Priest together with the Parish Council, or the Diocesan Bishop himself, may call a special Parish Assembly to consider matters of specific concern. Special Meetings of the voting members of the Parish may also be called by not less than 10% of the voting members of the Parish. When 10% of the voting members of the Parish shall call a Meeting, they shall deliver to the Parish Priest at least four (4) weeks prior to the date of said Meeting a written request signed by them stating the object of such Meeting.

c) Notice of the Annual and any Special Meeting shall be given by the Parish Priest from the ambo at the Divine Liturgy on three (3) consecutive Sundays prior to the Meeting and published in the church bulletin. The agenda of any Special Meeting shall be included in the notice. In any Meeting which has as part of its agenda capital expenditures, the purchase, sale, mortgage, lease or encumbrance of real property of the

Parish, or the amendment of these Bylaws, the notice shall specify the matter or matters to be acted upon at said Meeting and not business other than as set forth in the notice may be transacted at the meeting.

d) The quorum for all Parish Meetings shall be 25% of voting members, or 25 voting members (whichever is less), enrolled at the end of the calendar month preceding the date of the Meeting. In the absence of a quorum at the Annual Parish Meeting, that Meeting may be adjourned to a time determined by the majority of voting members present at that Meeting. At the Adjourned Meeting those in attendance shall constitute a quorum at that Meeting. These provisions for an Adjourned Meeting shall not apply either to any Special Meeting or to any subject matter at an Annual Meeting pertaining to the amendment of these Bylaws or the acquisition or alienation of Parish property or capital expenditures. In those instances the quorum requirements outlined in this Section must be applied.

e) Voting Requirements

- i. A simple majority vote by those voting members shall determine the decision of any Parish Meeting except as otherwise provided.
- ii. A two-thirds (2/3) vote of the voting members present shall be required in connection with any capital expenditures, including the purchase, sale, mortgage or lease of Parish property, but in no event may such expenditure be made with the approval of less than 25% of all voting members of the Parish.

f) Order of Meetings

i. Officers of the Parish Meeting

A) The Parish Priest shall chair and preside at all Parish Meetings unless he designates a vice-chair to preside. Notwithstanding the foregoing, the Bishop shall have the right to appoint himself or his designee to chair and preside at any Parish Meeting..

B) A Secretary, who may be the Secretary of the Parish Council, or a person elected at the Parish Meeting, shall record the Minutes of the Parish Meeting.

g) The Agenda of the Annual Meeting

- i. Opening Prayer
- ii. Determination of a Quorum
- iii. Minutes of Previous Meeting
- iv. Reports
- v. Financial Statement and Auditor's Report
- vi. Adoption of the Parish Budget
- vii. Election of the Parish Council and Delegates to the Diocesan Assembly and All American Council
- viii. Unfinished Business
- ix. New Business

- x. Adjournment
- xi. Closing Prayer

h) The Agenda of the Special Meeting

- i. Opening Prayer
- ii. Determination of a Quorum
- iii. Statement of Purpose of Meeting
- iv. Resolutions
- v. Adjournment
- vi. Closing Prayer

i) Record of a Parish Meeting

One copy of the Minutes of a Parish Meeting, Annual or Special, signed by the Secretary of the Meeting and the Parish Priest, including financial data and attached reports, if any, shall be sent to the Diocesan Bishop with an additional copy to the District Dean within no more than twenty-one (21) days of such Meeting.

j) In case the Parish Priest disagrees with one or more decisions of the Parish Assembly, his reasoned opinion shall be recorded in the minutes and the matter submitted to the Diocesan Bishop. So also, if an officer of the Parish Council disagrees with one or more decisions of the Parish Assembly, his or her motivated opinion shall be recorded in the minutes and the matter submitted to the Bishop. In case of disagreement with one or several decisions of a Parish Meeting, a statement of dissent may also be submitted in writing signed by one-tenth (1/10) of the voting members present at a Parish Meeting, and attached to the Minutes.

k) After review of the Parish Meeting Minutes the Diocesan Bishop shall approve or disapprove the decisions and resolutions, including elections, in those Minutes. If approved, those decisions and resolutions, including elections, shall become effective as of the date of approval by the Diocesan Bishop. If disapproved, those decisions and resolutions, including elections, shall be remanded back to the Parish for correction or amendment. No decisions or actions of a Parish Meeting shall become effective until approved in writing by the Diocesan Bishop.

l) The following matters are within the competence of the Parish Assembly meeting. The Parish Assembly shall:

- i. Hear and approve annual or special reports by committees and Parish organizations;
- ii. Consider and decide on matters concerning the purchase, improvement, or sale of real property; investment of Parish funds (other than in savings accounts); and the transfer of any interest in or change of ownership and the incurring of indebtedness or otherwise encumbering Parish funds or property, subject to the approval of the Diocesan Bishop;

- iii. Approve the annual operating budget submitted by the Parish Council;
- iv. Provide for the adoption and amendment of Parish Bylaws, if this is not otherwise provided for; and
- v. Elect members of the Parish Council, the auditing committee, and the lay delegates to the Diocesan Assembly and to the All-American Council, if the latter is to meet within the next 12 months.

m) No Parish Assembly, either annual or special, shall take any action which is contrary to or not in accord with the Statute. Should there be any such conflict, the Statute shall prevail. Should there be a question whether an action of a Parish Assembly is valid or lawful under the Statute, the issue shall be submitted to the Diocesan Bishop for determination.

ARTICLE V

THE PARISH COUNCIL

a) The Parish Council is the executive body that assists the Parish Priest in administration of the Parish and normally meets under his presidency. The Parish Council is comprised of the Parish Priest, ex officio, and members elected by the Parish Assembly and any ex officio and appointed members as may be provided for by Diocesan or Parish Bylaws. The Parish Council seeks to foster the spiritual and material welfare of the Parish.

b) The Parish Council consists of the assigned members of the clergy, the Warden (Starosta)/Vice President, nine elected council members, the President of the *Sisterhood*. The clergy, the Warden (Starosta)/Vice President, nine elected council members and the President of the Sisterhood shall have the right to vote upon all matters. Those members in the employ of the Church, or receiving any salary or payment for services rendered to or for the Church, are eligible to be elected to the Parish Council only with the blessing of the Parish Priest, and in accordance with the best practices. They shall have no right to vote upon matters concerning their employment or any matters considered by the rector as constituting a conflict of interest.

c) The members of the Parish Council, other than the clergy, are chosen by secret ballot at the regular parish meeting for a term of one year and until the election, confirmation and installation of their respective successors. No member who has accepted nomination and is running for election to the Parish Council may distribute ballots, collect ballots, or be involved with the vote count in any way.

d) Notwithstanding any provisions contained in this Article, all officers and members of the Parish Council shall hold office until their successors are duly elected, qualified and confirmed, and installed.

e) As soon as possible following the Annual Meeting, but no later than seven

days following, the Parish Priest shall forward the names of the elected Parish Council to the Diocesan Bishop for confirmation.

f) Only upon the confirmation of the election of the Parish Council by the Diocesan Bishop can the Parish Council be installed. The Service of Installation shall be held the Sunday preceding the first meeting of the newly-elected Parish Council. Incumbents shall hold office until new officers or members are actually installed. After approval of the Diocesan Bishop, the Parish Priest shall assemble the (incumbent and) new members of the Parish Council and conduct the installation of Parish Council members according to Diocesan procedures and norms.

g) All Parish Council members must continue to fulfill their qualifications for membership in the Parish Council during their entire tenure of office. Failure to retain membership as described in Article II will bring automatic dismissal from the Council.

h) All Parish Council members are expected to attend all Council Meetings during their tenure of office. The unexcused absence of any Council member from three (3) regularly scheduled Council Meetings will render said member subject to dismissal by the Parish Council. The Parish Council initiates all dismissal procedures. However, the Diocesan Bishop through the District Dean may intervene in cases in which a Council member becomes subject to dismissal for cause.

i) Any vacancy which occurs shall be filled by the Parish Council by electing a successor with confirmation by the Parish Priest, for the remainder of the vacated term.

The Parish Council is charged with:

a) the defence of the Orthodox Faith from anti-religious, sectarian or false doctrines penetrating into the parish;

b) the adoption of general measures looking toward the assurance and elevation of the moral life of the parishioners;

c) the supervision of external order at services;

d) the care for the cleanliness and decoration of the church edifice;

e) the collection of money in the church plate and the sale of candles at services. Establishing the fees for the use of the church property for baptisms, weddings, funerals and any other activities. To be done with the consultation with the parish priest.

f) the hiring of a custodian;

g) the care of church schools and all educational and charitable organizations of the parish;

h) the preparatory examination of all matters to be brought up at parish meetings, regular or special, the organization generally of such meetings and the

carrying out of the decisions of such meetings;

- i) the keeping of a list of the voting members;
- j) attending to the increase of parish funds;
- k) managing the real property, securities and other temporalities of the church;
- l) collecting funds according to the decision of parish meetings, the Metropolitan council or the All American Councils;
- m) considering the degrees of need of those appealing for help and making grants in accordance with the proven need of the applicants and the means of the parish;
- n) purchasing of necessities for the church and parish hall;
- o) appearing in, civil courts in respect to matters affecting the legal rights or obligations of the parish;
- p) representing the parish in contacts with the civil authorities and local organizations designed to promote social and civic welfare of the local community;
- q) fostering the establishment and maintenance of parish organizations;
- r) communicating with the Diocesan Authority.
- s) preparing and presenting to the regular parish meeting a report as to the disposition of parish funds for the past year and a budget for the future;
- t) all other matters affecting the temporal, moral and social interests of the parish which are not within the peculiar competency of the parish meeting, the parish clergy or the higher ecclesiastical authorities.

FINANCIAL OBLIGATION

a) Each year, the Parish shall remit to the Diocesan Treasurer its minimum financial support to the Diocese and through it to The Orthodox Church in America as determined by the All- American Council and in conformity with local civil law.

PARISH COUNCIL OFFICERS

a) The Officers of the Parish Council shall consist of at least the President (Parish Priest), Vice President (Warden/Starosta), Secretary and Treasurer. Additional officers may be elected if deemed necessary by the Parish Council.

b) The duties of the officers of the Parish Council are:

i. The President (the Parish Priest) shall:

a) preside over the Parish Council. He shall convene meetings of the Parish Council, guide its discussions, see to the carrying out of its decisions and receive incoming and sign outgoing papers. Papers involving financial obligations of the parish shall be countersigned by the Secretary or Financial Secretary and the Treasurer.

- b) be an ex officio member of all Standing Committees and
- c) shall represent the Parish Council on all appropriate occasions.
- d) Be a signatory on all Parish bank accounts.
- e) In case of a disagreement between the Parish Priest and a resolution of the council, the case is referred to the consideration of the Diocesan Authority.

ii. The Vice President (Warden/Starosta) shall:

- a) Act in the place of the President during the latter's absence.
- b) oversees the operation of the candle stand during the time of divine service;
- c) supervises special collections;
- d) is responsible for the purchase of candles, lights, and other necessities for use in the church;
- e) watches over the external order during the divine services (inhibit loud conversation, disturbing physical activity/activities, insure access areas within the temple are not blocked by carriages, chairs, etc);
- f) from among the members of the Parish Council, two assistants to the Warden are chosen, who in case of his/her absence perform his/her duties during the time of divine service, and shall also have regular duty at the time of the divine services and may appoint from among the parishioners others to help in the collecting and counting of money and shall certify this by their signatures; those on duty should be in church at least one-half hour before the beginning of divine services.
- g) it is the Warden's responsibility to hold all moneys collected until he/she can deliver them to the Financial Secretary;
- h) the Warden looks after the parish grounds and buildings.
- i) Perform such other duties as may be imposed by law, by the Articles of Incorporation, or by these Bylaws, or as may be prescribed from time to time by the Parish Council.
- j) Be a signatory on all Parish bank accounts.

iii. The Secretary shall:

- A) Keep an accurate record of the transactions of all meetings of the Parish Council and the Parish.
- B) Be responsible for posting notice of all Meetings of the Parish and the Parish Council.
- C) Maintain a membership list of the Parish which shall contain the address and voting qualifications of each member, and shall record therein the fact and date of termination, if any, of the membership of any such member.

D) Submit to the Diocesan Bishop and the District Dean copies of all appropriate reports, lists and Minutes.

E) Perform such other duties as may be imposed by law, by the Articles of Incorporation, or by these Bylaws, or as may be prescribed from time to time by the Parish Council.

iv. The Treasurer shall:

a) prepares annual and semi-annual financial reports for the parish and prepares the budget for the coming year;

b) writes checks to cover all the church expenses in accordance with the resolutions of the Parish Council;

c) gives over all books, receipts and bank statements to the Auditing Committee for audit;

d) all church checks shall be cosigned by two of the three following persons: the Parish Priest, or Warden/vice president and Treasurer,

e) reports on the income and expenses from the church treasury when requested by the Parish Council.

f) receives reports from the Financial Secretary concerning deposits made into the treasury (various bank accounts).

g) Receive and safely keep all money and securities of the Parish and shall invest and disburse the same under the direction of the Parish Council.

h) Render a statement at the Annual Parish Meeting and at such other times as may be requested by the Parish Council. The annual statement shall be audited and certified.

i) Keep a complete account of the finances of the Parish which shall be and remain the property of the Parish and which shall be open for inspection at any reasonable time by the Parish Council.

j) Prepare all appropriate financial reports and statements, which are to be submitted by the Secretary to the Diocesan Bishop and District Dean.

k) Perform such other duties as may be imposed by law, by the Articles of Incorporation, or by these Bylaws, or as may be prescribed from time to time by the Parish Council.

l) Send quarterly reports of the financial stewardship obligations to each Parish member.

m) Be a signatory on all Parish bank accounts.

THE FINANCIAL SECRETARY:

A Financial Secretary shall be chosen from among the members of the Parish Council who shall receive moneys from the Warden/Vice President, shall make a detailed list of all moneys collected in the account books, and shall deposit them in the bank. He/she may be appointed by the Parish Council to temporarily assume the duties of the

Treasurer in the event the latter is incapacitated or otherwise deemed incapable of Performing his/her duties under these bylaws.

THE AUDITING COMMITTEE

An auditing committee composed of three members and an alternate shall be elected at the regular Parish Meeting to hold office for one year and until the election, confirmation, and installation of their successors. The duties of the auditing committee shall be to audit the accounts, statements and to inspect the vouchers for disbursements, securities and bank balance of the Treasurer and to report on the financial administration of the parish to the regular Parish Meeting.

SPECIAL COMMITTEES

In case of need, the Parish Council has the right to appoint necessary committees and to name to them the persons needed.

INVITED PARTICIPATION IN MEETINGS OF THE PARISH COUNCIL:

The heads of the various parish institutions and establishments may be invited to take part in the meetings of the Parish Council with a right to vote upon matters in their care.

PARISH ADMINISTRATION

a) The Parish Priest, as head of the Parish, by virtue of the ecclesiastical authority vested in him, shall guide and oversee the total Parish program, and is ultimately responsible with the Parish Council to the Diocesan Bishop for the life and activity of the Parish.

b) If a problem should arise between the Parish Priest and the Parish Council, the matter shall not be brought before the Parish at a Parish Meeting. The Parish Priest and/or the Parish Council shall have the right to refer the matter to the District Dean according to the then current Diocesan Directives. However, in matters of appeal the decision of the Diocesan Bishop shall be deemed final.

c) The Parish Council shall fill such paid positions as may be available in the Parish by interviewing and determining qualifications of candidates. In all cases, Orthodox Christians should be hired if possible, with the exception of the Choir Director, who MUST be a practicing Orthodox Christian. Compensation is to be determined by the Parish Council and included in the Parish Budget to be approved at an Annual Parish Meeting.

d) All lay salaried personnel of the Parish shall be responsible to the Parish Council as to the fulfillment of their duties, with the exception of the Choir Director,

who shall coordinate the liturgical life of the Parish with the Parish Priest. Such duties shall be determined by the Parish Council and clearly outlined in a "Job Description." A letter signed by the Parish Priest offering employment will be provided to a candidate for hire and will include the Job Description as well as clearly define an at-will employment relationship. Additionally, all offers for employment will be contingent upon the hiree's ability to provide documentary evidence of eligibility for employment in the United States. Because the employment relationship is at-will, the Parish Council and employee have the right to terminate the relationship at any time, with or without cause. Similarly, the Parish may modify or alter the position, with or without cause or prior notice. On an annual basis, the performance of the employee will be evaluated and documented, however the Parish Council reserves the right to intermittently review performance or behavior as deemed necessary. Although job duties, title, and/or compensation may change, the "at-will" nature of the employment relationship may only be changed with the approval of the Parish Council and in a document signed by the Parish Priest and Vice President.

PARISH COUNCIL MEETINGS

a) The Parish Council shall establish regular times for its monthly meetings, to be held on the Parish premises or may be by electronic methods if agreed by the Parish Council.

b) While the Parish Priest is the head of the Parish, he does not have to be Chairman; a lay member of the Parish Council may be appointed to chair said meetings by the Parish Priest.

c) The Parish Council shall conduct its business from a pre established agenda.

d) A simple majority of the Parish Council shall constitute a quorum.

e) A majority vote of those members in attendance can decide issues brought before the Parish Council.

f) All decisions of the Parish Council must be confirmed by the Parish Priest before becoming effective.

g) The Minutes of the Parish Council meetings shall be signed by the Secretary and the Parish Priest. The original of the Minutes is the property of the Parish and becomes part of the Parish Archives.

h) Parish Council Meetings are open for attendance to all members of the Parish. An open forum may be held, at which time a member of the Parish, recognized by the Chair, may speak on an issue. However, only members of the Parish Council may make a formal resolution or vote on any issue.

i) At its discretion the Parish Council may hold a Closed Meeting, i.e. one that is restricted to Council members only and accordingly noted in the Minutes.

j) In the event that a matter is brought before the Parish Council, which in the opinion of the Parish Priest is in violation of the Canon Law of the Orthodox Church, The Statute of the Orthodox Church in America, or the Diocesan Directives, including, but not limited to matters of 1) Doctrine, or 2) Canon Law, or 3) Liturgical Practice, or 4)sacramental observance, or 5) ecclesiastical discipline, the Parish Priest has the right to veto both discussion and vote on said matter within the Parish Council. Any appeals from this decision shall be to the Diocesan Bishop which shall be handled as he directs.

k) The following matters are within the competence of the Parish Council. The Parish Council shall:

- i. Exercise fiduciary responsibility for the Parish;
- ii. Implement within its competence the decisions of the Parish Assembly, the Diocesan Bishop, and the All-American Council;
- iii. Formulate, implement, and direct stewardship programs;
- iv. Oversee implementation of the budget adopted by the Parish Assembly;
- v. Authorize any fund-raising activity within the Parish;
- vi. Manage, inventory, and maintain Parish properties, both real and personal;
- vii. Regulate use of Parish facilities;
- viii. Maintain and verify the official roster of the Parish's general and voting membership;
- ix. Oversee and regularly receive reports from Parish ministries and organizations;
- x. Prepare reports on aspects of Parish life within its competence for the annual Parish Assembly;
- xi. Propose an annual budget for consideration at the annual Parish Assembly; and
- xii. Set a date and propose an agenda for Parish Assemblies.

l) No regular or special meeting of the Parish Council shall be held without the knowledge and blessing of the Parish Priest. If the Parish Priest is unable to preside over a meeting of the Parish Council, the senior elected officer of the Parish Council shall preside with the blessing of the Parish Priest or the Bishop. In case the office of Parish Priest is vacant, until the appointment of the new Parish Priest, the senior elected officer of the Parish Council shall preside, unless the Bishop or his delegate is present.

m) The official minutes of all meetings of the Parish Council shall, in accordance with Diocesan or Parish Bylaws, be approved, signed, properly maintained, and made available as appropriate.

n) In case the Parish Priest disagrees with one or more decisions of the Parish Council, his reasoned opinion shall be recorded in the minutes and the matter referred to the Diocesan Bishop.

o) The Parish Council is responsible for submitting annually the census and membership information to the office of the Diocesan Bishop, in accordance with the form as determined in current Diocesan Directives.

ARTICLE VI PARISH PROPERTY

a) The Parish corporation holds legal title to all Parish property, assets, and funds. In administering them, the Parishioners and the officers elected by them must always remember the religious nature, purposes, and goal of the Parish and act as trustees of such property dedicated to the service of God and the use of the Church.

b) All Parish property, assets and funds are and shall be owned and held by the Parish or Parish corporation in trust for the use, purpose, and benefit of the Diocese of The Orthodox Church in America of which it is a part. This provision shall not limit the authority of the Parish or Parish corporation in its administration of such property, assets, and funds in accord with the faith, governance, and discipline of The Orthodox Church in America.

c) In the event the Diocese shall be dissolved or attempt to disaffiliate from The Orthodox Church in America in a manner, all Parish property, assets and funds of such Diocese are and shall remain subject to the use, purpose, and benefit of The Orthodox Church in America.

d) If the Parish is canonically suppressed or otherwise ceases to exist, the Diocesan Bishop shall immediately assume the administration and control of its properties and funds, or to delegate such administration and control to the District Dean, in accordance with the provisions of Article VI, section (b). In all cases, the sacred and untouchable items, viz. the Holy Antimension, the Tabernacle, and the Sacred Vessels, as well as all Parish records, shall be surrendered to the Diocesan Bishop or his designee.

e) The Parish or Parish corporation is the sole owner of all Parish property, assets, and funds, subject to the following Sections of this Article and the Statutes and provisions of the Orthodox Church in America. All policies of "Insurance" shall be registered in the name of the corporation, which shall be listed as sole beneficiary.

f) All deeds, policies and other important and legal documents shall be kept for safety in a fire-proof safe or safety deposit box. The combination of any safe shall be entrusted to the Parish Priest, Vice President, Secretary and Treasurer.

REAL PROPERTY

The Parish may purchase real property, or sell, mortgage, lease or otherwise encumber its real property upon approval of a two-thirds (2/3) majority vote of the voting members of the Parish in attendance at an Annual Parish Meeting or Special Meeting called for that specific purpose, at which a quorum is present, due notice having been given, on a resolution presented by the Parish Council and Parish Priest, and subject to final approval of the Diocesan Bishop. However, in no event may such action be taken with the approval of less than 25% of all voting members of the Parish.

SPECIAL BEQUESTS

As far as possible all special bequests, gifts and devises should be used by the Parish for the purpose for which they were made. In the event the purpose of such gift, devise, or bequest is not feasible or practical, as so determined by the Parish Council and Parish Priest, an alternate use may be determined by the Parish Council and Parish Priest upon consultation with the donor or the estate representative.

ARTICLE VII PARISH INSTITUTIONS

SISTERHOOD:

The Sisterhood of the Holy Virgin Mary Church Cathedral takes care of the decoration of the Church, the vestments and the furnishing of the parish buildings and garden, and finances charitable works by collecting funds, sponsoring luncheons and other enterprises.

CHURCH SCHOOLS:

- (a) In the parish there may be two church schools in order to satisfy the needs of the religious education of children in the Orthodox Faith.
- (b) Care for the opening and material support of its church school is the duty of the parish.
- (c) Religious instruction in the church school is under the supervision of the Rector, assisted by other members of the clergy and teachers. The Parents Committee is elected for a term of one year from among the parents of students in the church school.
- (d) According to the need the clergy must open and conduct courses in religious education for the adult parishioners.

L.O.V.E.S

The Los Angeles Orthodox Visitors to Elderly and Sick (L.O.V.E.S), a parish organization, visits the elderly and sick in homes, hospitals, convalescent homes. L.O.V.E.S provides assistance to our parishioners as needed, or as they are apprised. It also provide meals to those individuals who are unable to attend church, provide. It contributes physical and financial support St. John of Kronstadt Home for the Elderly, a private organization, and conducts fund raising events to finance charitable works for the benefit of elderly and infirm parishioners, sponsoring holiday meals and other activities. L.O.V.E.S. also notifies the rector concerning new or previously unknown cases of elderly and sick parishioners at homes, hospitals, convalescent homes, and so on.

ST. KSENIA SOCIETY

The St. Ksenia Society, is a parish organization, which provides assistance to homeless people in, - but not limited to - the surrounding Silver Lake area. They deliver meals, clothing and items of personal hygiene to those experiencing homelessness and those in need. It organizes charitable projects for the benefit of the homeless in Silver Lake aria by collecting funds, sponsoring meals and other enterprises.

ARTICLE VIII THE AMENDMENTS, REGULATIONS AND GENERAL PROVISIONS

AMENDMENTS

These Parish Bylaws may be altered or amended by a two-thirds (2/3) majority vote of the voting members of the Parish in attendance at the Annual Parish Meeting at which a quorum is present or a Special Meeting convened for that purpose at which a quorum is present, provided that timely written notice is given to the membership specifying the proposed addition, change or amendment. All amendments, changes or additions so proposed shall not take effect unless approved by the Diocesan Bishop.

PROCEDURES

For matters not covered by these Bylaws the Parish may enact procedures and regulations to meet the need of a particular situation in the Parish. Such additional procedures and regulations must be presented to the Diocesan Bishop for his approval before they become effective.

SCOPE OF RIGHTS

Notwithstanding any provisions contained herein or any provisions that might be assumed from the civil law concerning not-for-profit or religious corporations, nothing in these Bylaws shall be deemed to have granted any individual parishioners or group of parishioners any rights, as members of the present corporation, that are in conflict with, or at variance with, or superior to those recognized in the Statute of the Orthodox Church in America.

TEXT

a) For all purposes the English text of these Bylaws shall be deemed to be the official text.

b) In these Bylaws, the word "Parish" shall refer to the Holy Virgin Mary Russian Orthodox Cathedral, the word "Diocese" shall refer to the Diocese of the West of the Orthodox Church in America, and the words "Diocesan Bishop" shall refer to the Archbishop or Bishop of the Diocese of the West and those persons or groups duly appointed by him for the governance of the Diocese, respectively.

c) In the appropriate context the singular use of a word may refer to the plural, and the masculine may refer to the feminine.

ADOPTION

These Bylaws were accepted at a annual Parish Meeting held on the 30 day of January, 2022 at which the appropriate quorum was present, the Parish members having been duly notified and have become effective on the 06 day of February, 2022 by the approval of the Diocesan Bishop. They revoke, supplant and replace any and all Parish Bylaws, whether corporate or not, previously in use.

THIS IS TO CERTIFY that I am the duly elected, qualified and acting secretary of the above named corporation and that the foregoing Bylaws were adopted as the Bylaws of said corporation on the date set forth above.

Executed at _____, _____ on _____, ____.

Secretary

Approved:

+ Benjamin, Archbishop of San Francisco

